

ReThink Terms and Conditions of Use & Privacy Policy

OVERVIEW

This platform is maintained and operated by GetRe (also referred to as “Re” or “ReThink”). Throughout the site, the terms “we,” “us,” “ReThink,” “company”, “Portal”, and “our” refer to GetRe or Re or ReThink. ReThink offers this platform, including all information, tools, products, and services available from this site to you, the user, conditioned upon your acceptance of all terms, conditions, policies, and notices stated here.

By visiting our site and/or using the platform, you engage in our “Service” and agree to be bound by the following terms and conditions (“Terms of Service”, “Terms”), including those additional terms and conditions and policies referenced herein and/or available by hyperlink. These Terms of Service apply to all users of the platform, including without limitation users who are browsers, contributors of content, and/or registered users.

Please read these Terms of Service carefully before accessing or using our platform, products, or services. By accessing or using any part of the platform or service, you agree to be bound by these Terms of Service. If you do not agree to all the terms and conditions of this agreement, then you may not access the platform or use any products or services. If these Terms of Service are considered an offer, acceptance is expressly limited to these Terms of Service.

Any new features or tools which are added to the current platform shall also be subject to the Terms of Service. You can review the most current version of the Terms of Service at any time on this page. We reserve the right to update, change, or replace any part of these Terms of Service by posting updates and/or changes to our platform. It is your responsibility to check this page periodically for changes. Your continued use of or access to the platform following the posting of any changes constitutes acceptance of those changes.

USE OF SERVICE

By signing up and using ReThink, you warrant that you are legally capable of entering into binding contracts, that all registration information you submit is truthful and accurate, and that your use of the Service does not violate any law or regulation. Users under the age of 18 must have the consent of a parent or legal guardian to use the Service.

ReThink is provided on an 'as is' basis. We make no warranties, expressed or implied, and hereby disclaim and negate all other warranties including, without limitation, implied warranties or conditions of merchantability, fitness for a particular purpose, or non-infringement of intellectual property or other violation of rights.

Further, we do not warrant or make any representations concerning the accuracy, likely results, or reliability of the use of the Service or Platform or the Data.

The Portal may contain links to third-party websites or services that are not owned or controlled by ReThink. ReThink has no control over and assumes no responsibility for the content, privacy policies, or practices of any third-party websites, apps, products, or services.

By accessing or using the Portal or ReThink, you agree to be bound by these Terms and our Privacy Policy. If you do not agree to these Terms, do not use the Portal.

PERSONAL INFORMATION

You may be asked to enter your personal information on the platform or by our support executives. This information is collected as per the requirement mandated for the use of the platform and will be governed by our Privacy Policy.

ReThink retains user data for as long as necessary to provide the Services or as required by law. Users may request deletion of their data by contacting us at rethink@getre.org, and ReThink will process such requests in accordance with applicable laws.

Deletion of data requests will be processed as soft deletion requests by making the personal identification details as 'Anonymous.'

Your personal information like phone number, email address, name, geo-location etc. (but not limited to these) will be used to communicate with you. By submitting your response, you agree for us to reach out to you on WhatsApp, Emails, SMS, and more.

Users may request to unsubscribe from any/all communications by contacting us at rethink@getre.org.

ACCEPTABLE USE

All Users must comply with the following rules regarding acceptable use of the Service:

- You may not access, tamper with, or use non-public areas of the Service and Websites.
- You may not probe, scan, or test the vulnerability of any system or network or breach or circumvent any security or authentication measures.
- You may not access or search the Service and Websites by any means other than intended by us.
- You may not misuse the Service to carry out, promote, or support any unlawful or fraudulent activities.
- You agree not to misuse the portal to make personal financial gains or use the data for anything other than its intended purpose.
- The accuracy of CO2e or similar data provided by the platform is based on the information submitted by the user, and any discrepancies in user submissions will affect the accuracy of the results. We do not take any responsibility for the accuracy of data or calculations of any kind of data.
- Users are responsible for maintaining the confidentiality of their account information, including their username and password, and for all activities that occur under their account. Users are responsible for providing accurate information for ReThink to send them further communications.
- ReThink may use third-party applications/products/services like WhatsApp, SMS services, hosting providers, and other service providers to provide Services on ReThink. All Terms and

Conditions mentioned in this agreement will be applicable for third-party providers' services.

- Users will be given an option to offset their carbon footprint or to donate to ReThink to run sustainability projects and for the maintenance of platform or services. ReThink will not be responsible for any misrepresentation, remedy, communication gap or disputes arising from the usage of peripheral services or products.
- A monthly subscription fee for the usage of ReThink may be applicable for a certain type of users.
- No refund will be offered for any/all intents and purposes. Any amount paid to ReThink that constitutes payment for the provision of unused Products or Services, will not be refunded.
- Users can request to export their data of usage of the platform by contacting us at rethink@getre.org.

PRIVACY

ReThink is committed to protecting the Users Privacy. By using the Portal's Services, the User agrees that the Portal can use such data in accordance with the Portal's privacy policy. The Portal uses a variety of security, electronic, and managerial procedures to help protect all the information from unauthorised access, use or disclosure. Only authorised employees within ReThink who, in the course of their duties, can access and use information collected from individual end users. The User can request correction of factual errors in end user's personally identifiable information by sending an e-mail to: rethink@getre.org. To protect privacy and security, Portal will also take reasonable steps to verify their identity before making corrections. The Portal uses the information acquired to understand and analyse the usage trends and preferences of the Users, visitors and end users, to improve the Service, and to develop new products, tools, services, features, and functionality. The data will be used in aggregated form. User's data will be used for marketing, sales, and promotional purposes. The Portal constantly reviews the systems and data to ensure the best possible service to the Users. In case, the Government authorities require data for any purpose, the

Portal will have to provide them with the same. Like most interactive websites, this Portal uses cookies and other trackers to enable the Portal to retrieve user details.

NONDISCLOSURE AND NONCOMPETITION

The User agrees to respect the confidentiality of the data/information generated by the Portal and not to disclose them to anyone. The User agrees not to make use of research done in the course of work for the Portal while employed by any of our competitors. The User agrees not to set up a business as a direct competitor of the Portal for a period of 5 years internationally from the last time of their usage of the Portal. The User agrees to pay liquidated damages as asked by ReThink if any violation of this paragraph is proved or admitted.

FORCE MAJEURE

Neither party shall be liable to the other party for any failure to perform any obligation under any Agreement which is due to an event beyond the control of such party including but not limited to any Act of God, terrorism, war, Political insurgence, insurrection, riot, civil unrest, act of civil or military authority, uprising, earthquake, flood or any other natural or man-made eventually outside of either parties control, which causes the termination of an agreement entered into, nor which could have been reasonably foreseen. Any Party affected by such event shall forthwith inform the other Party of the same and shall use all reasonable endeavours to comply with the terms and conditions of any Agreement contained herein.

TERMINATION

The obligations and liabilities of the parties incurred prior to the termination date shall survive the termination of this agreement for all purposes. These Terms of Service are effective unless and until terminated by either you or us. You may terminate these Terms of Service at any time by notifying us that you no longer wish to use our Services, or when you cease using our services.

If in our sole judgement you fail, or we suspect that you have failed, to comply with any term or provision of these Terms of Service, we also may terminate this agreement at any time without notice and you will remain liable for all amounts due up to and including the date of termination; and/or accordingly may deny you access to our Services (or any part thereof).

ReThink may terminate or suspend your access to the Platform or Services at any time, without prior notice or liability, for any reason whatsoever, including without limitation if you breach the Terms. Upon termination, your right to use the Platform or Services will immediately cease.

ReThink reserves the right to modify, suspend, or discontinue the Services (or any part thereof) at any time, with or without notice to the user. Users agree that ReThink shall not be liable to them or to any third party for any modification, suspension, or discontinuation of the Platform or Products or Services.

ERRORS, INACCURACIES, AND OMISSIONS

Occasionally there may be information on our platform or in the Service that contains typographical errors, inaccuracies, or omissions that may relate to CO2e calculations, initiatives, micro-actions, product descriptions, pricing, processes, promotions, offers, product shipping charges, transit times, and availability. We reserve the right to correct any errors, inaccuracies, or omissions, and to change or update information or cancel Services if any information in the Service or on any related platform is inaccurate at any time without prior notice (including after you have submitted your request and made payments for the same).

We undertake no obligation to update, amend, or clarify information in the Service or on any related platform, including without limitation, pricing information, except as required by law. No specified update or refresh date applied in the Service or on any related platform should be taken to indicate that all information in the Service or on any related platform has been modified or updated.

DISCLAIMER OF WARRANTIES; LIMITATION OF LIABILITY

We do not guarantee, represent, or warrant that your use of our platform/product/service will be uninterrupted, timely, secure, or error-free. We do not warrant that the results that may be obtained from the use of the product will be accurate or reliable. You expressly agree that your use of, or inability to use, the platform, product or service is at your sole risk.

The product or service available to you (except as expressly stated by us) is provided 'as is' and 'as available' for your use, without any representation, warranties, or conditions of any kind, either express or implied, including all implied warranties or conditions of merchantability, merchantable quality, fitness for a particular purpose, durability, title, and non-infringement.

In no case shall GetRe or Re or ReThink, our directors, officers, employees, affiliates, agents, contractors, interns, suppliers, service providers, partners or licensors be liable for any injury, loss, claim, or any direct, indirect, incidental, punitive, special, or consequential damages of any kind, including, without limitation, lost profits, lost revenue, lost savings, loss of data, loss of money, replacement costs, or any similar damages, whether based in contract, tort (including negligence), strict liability, or otherwise, arising from your use of any of the service or any products procured using the service or any service or products procured through our third party collaborations, or for any other claim related in any way to your use of the service or any product, including, but not limited to, any errors or omissions in any content, or any loss or damage of any kind incurred as a result of the use of the service or any content (or product) posted, transmitted, or otherwise made available via the service, even if advised of their possibility.

INDEMNIFICATION

You agree to indemnify, defend, and hold harmless GetRe or Re or ReThink and our parent, subsidiaries, affiliates, founders, co-founders, partners, officers, directors, agents, contractors, licensors, service providers, subcontractors, suppliers, interns, and employees, harmless from any claim or demand, including reasonable attorneys' fees, made by any

third-party due to or arising of your use of this platform or portal or products or services or the documents they incorporate by reference, or your violation of any law or the rights of a third party.

ReThink shall not be liable for any indirect, incidental, special, consequential, or punitive damages, or any loss of profits or revenues, whether incurred directly or indirectly, or any loss of data, use, goodwill, or other intangible losses, resulting from the user's reliance on the information provided by ReThink.

SEVERABILITY

In the event that any provision of these Terms of Service is determined to be unlawful, void, or unenforceable, such provision shall nonetheless be enforceable to the fullest extent, and the unenforceable portion shall not be deemed to be severed from these Terms of Service; such determination shall not affect the validity and enforceability of any other remaining provisions.

COPYRIGHT, NOTICE, AND LICENSE

The information, data, content, graphics, ideas, text, sounds, images, buttons, trademarks, service marks, trade names, and logos ("Materials") contained in this platform are protected by copyright, trademark, database right, and other intellectual property laws under national laws and international treaties.

GetRe or Re or ReThink or its licensors (as the case may be) retain all right, title, interest, and intellectual property rights in and to the Materials. You may not modify, copy, distribute, transmit, display, perform, rebroadcast, reproduce, publish, license, create derivative works from, transfer, or sell any information, ideas, initiatives, micro-actions, materials, software, products, or services obtained from this platform. Anyone breaching any of these provisions will be prosecuted.

ReThink will be using the User's Company Name and Logo for displaying on the Portal site. ReThink may use the User's company name and logo for the marketing and promotional purposes. Using the Services does not authorise the User ownership of any intellectual

property rights in the Services or the content the User accesses. The User may not use content from the Services unless permission has been obtained from the owner.

COOKIE POLICY

We use cookies. Cookies are small files that a site or its service provider transfers to your computer's hard drive through your Web browser that enables the site's or service provider's systems to recognize your browser and capture and remember certain information. Your acceptance of these terms and conditions and the usage of the platform, products and/or services of ReThink is equivalent to providing the consent to Rethink or platform to store cookies and use them.

ENTIRE AGREEMENT

These Terms and Conditions constitute the entire agreement between the user and ReThink with respect to the use of the Portal and Services, and supersede all prior or contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to the Portal and Services. These Terms and Conditions are also applicable for all the peripheral products/tools/partner portals like WhatsApp, SMS services, hosting providers, other service providers that ReThink will be using to share the information or provide the products and services.

GOVERNING LAW

You agree that any claim related to these Terms and Conditions or your use of ReThink must be resolved exclusively in the District Court of Mumbai, Maharashtra, India, that you submit to the personal jurisdiction of either of these courts for the purpose of litigating any such claim, and that the laws of the State of Maharashtra, India will govern these Terms and any claim, without regard to conflict of law provisions.

CONTACTING US

If there are any questions regarding this privacy policy, you may contact us through rethink@getre.org.